APPENDIX 'A' TO NOTICE INVITING TENDER (NIT)
E-TENDER

1.	Name of work	**REPLACEMENT OF CEILING FAN HOOKS IN TRV POWAI AND CORA POWAI BUILDINGS, MUMBAI UNDER GE DAMAN**
2.	Estimated Cost	**Rs. 22.00 Lakh (At par market)**
3.	Period Of Completion	**120 Days**
4.	Cost Of Tender Documents	Rs. 500.00 in the shape of DD/ Bankers Cheque from any Scheduled Bank in favour of Garrison Engineer Daman and payable at Daman. Note: In case of retendering, the contractor who had Quoted in the previous call is not required to submit the cost of tender.
5.	Website /Portal Address	**https://defproc.gov.in**
6.	Type of Contract	**The tender is** Item rate Contract **based on IAFW 1779-A with BOQ to be priced by the tenderers** and GCC (IAFW-2249). The Tenderer are required to quote their rate againts item of BOQ.
7.	Information & Details	**As per Critical Dates**
	(a) Bid Submission start Date	
	(b) Last date of Bid submission	
	(c) Date of Bid Opening	
8.	Eligibility Criteria	
	(A) For MES enlisted Contractors	Contractors shall satisfy the following:- (i) Enlisted in Class 'E' and Category a(i) as per MES enlistment rules. (ii) Shall not carry adverse remarks in WLR or any similar report circulated by the competen`t Engineer authority. (iii) Prequalification criteria as in Note No 1 below.
	(B) For Contractors not enlisted with MES	(i) Contractor not enlisted with MES should meet the enlistment criteria of 'E' Class & Category a(i) contractor with regard to satisfactorily completion of requisite value works with Central/State Government/ Central/State PSUs/ AWHO/ AFNHB /CGEWHO /DGMAP, annual turnover, bank solvency,working capital & other requirement given in Para 1.4 & 1.5 of section 1 of MES Manual of Contracts 2020 as available in all MES formations, MES website (www.mes.gov.in) as well as attached as Annexure-I to this Appendix. (ii) Not carrying adverse remarks in WLR or any other similar report circulated by any competent authority, if already working in MES.

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	(C) For All Contractors	(iii) Not suspended/ debarred/ blacklisted (either Permanent or temporarily) from paricipating in any bid or for business dealings by any Central/State Government department or any Central/State Government PSU or any Autonomus Body under Central/State Government or any Local Body as on the bid submission end date.
9.	Tender Issuing and Accepting Officer	**Name** : Garrison Engineer Daman **Address** : Military Engineer Services Garrison Engineer Tat Rakshak Vihar, Dalwada , Nani Daman Post Daman (UT) -396210 **Contact Details** : 0260-2220058
10.	Executing Agency	**Garrison Engineer Daman**
11.	Earnest Money	**Rs 44,000.00** in favour of Garrison Engineer Daman in the form of Deposit at Call Receipt from a Scheduled Bank.

NOTES:-

1. In case after opening of Cover 1, the number of MES enlisted contractors of eligible class as well as eligible un-enlisted contractors, if any, fulfilling the other eligibility criteria given in NIT is less than 7 (Seven), applications in respect of MES contractors of one class below the eligible class shall also be considered subject to fulfilment of other eligibility criteria given in the NIT. Therefore MES contractor's one class below may also bid for this tender. Such contractors (contractors of one class below the eligible class) shall not be considered in case their present residual work in hand is more than FIVE TIMES their present tendering limit. However in case such contractors fulfil the criteria of upgradation to the stipulated eligible class based on past experience of completed works (individual work experience and/or average annual turnover, as applicable) and financial soundness (solvency/financial soundness and working capital), the ceiling of present residual work will not apply and they will be considered for issue of tender. Such bidders shall upload in their Cover-1 bid detailsrelated to residual work in hand like details of works in hand showing names of work, name of Accepting Officers, Contract amounts, dates of commencement and completion (stipulated) and progress as on bid submission date. Such contractors, if claim to fulfil the criteria of upgradation shall also upload the requisite information/documents in support of upgradation, These details shall be verified by the Tender Issuing Authority from concerned formations in case bids of such contractors are considered for evaluation.

2. In case after opening of Cover 1, the number of MES enlisted contractors of eligible class as well as un-enlisted contractors if any, fulfilling the other eligibility criteria given in NIT, are 7(Seven) or more, applications of only those one class below the eligible class bidders shall be considered, who have previously completed similar works satisfactorily and are meeting the criteria of upgradation in respect of past experience of completed works (individual work experience and/or average annual turnover as applicable) and financial soundness(solvency/financial soundness and working capital) as per details given in Manual on Contracts. Therefore such contractors shall upload the requisite information / documents in the cover-1.

3. Un-enlisted contractor shall be considered provided he meets the criteria. Foreign firms shall not be eligible for this tender. However Indian Firms having foreign national /Indian nationals staying abroad / Indian national having taken foreign citizenship, as director(s) shall be considered subject to security clearance from the concerned authorities.

NOTICE INVITING TENDER (NIT) Contd/..

4. Contractors enlisted with MES will upload following documents in Cover -1 for checking eligibility:-
(a) Application for tender on firm's letter head
(b) Enlistment letter issued by the Registering Authority duly renewed for the cycle period in vogue.
(c) Scanned copy of DD/ Bankers Cheque towards cost of tender and EMD declaration letter/ Bid Securing Declaration letter in case of SSD bond is not signed at the time of registration.
(d) Scanned copy of GST registration.
(e) Scanned copy of EPF registration.
(f) Any other document required as described in this Appendix.

5. Contractors not enlisted with MES will be required to upload following documents in Cover-1 for checking eligibility :-
(a) Application for tender on firm's letter head.
(b) Scanned copy of DD/Bankers Cheque towards cost of tender and EMD declaration letter/ Bid Securing Declaration letter.
(c) Copy of Police Verification Report / Police Clearance Certificate/ Character Certificate from he Police Authority of the area where registered office of the firm is located/ Notarized copy of valid passport of the Proprietor/ Each Partner/Each Director.
(d) All documents required for enlistment in MES for class mentioned in Para 8(B) above as per Para 1.5 of Section 1 MES Manual on Contracts 2020.
(e) Details of works being executed in MES, if any.
(f) Scanned copy of GST registration.
(g) Scanned copy of EPF registration.
(h) Any other document required as described in this Appendix.

6. Tenders not accompanied by scanned copies of requisite DD/Bankers cheque towards cost of tender and earnest money declaration letter/ Bid Securing Declaration letter (as applicable) in Cover -1 shall not be considered for validation of "T" bid and their finance bids will not be opened.

7. Contractors should ensure that their original physical DDs and Earnest Money Deposit (EMD) instruments (as applicable) reach the Office of the GE Daman within 05(five) days of bid submission end date failing which following action shall be taken:-

(a) In case of tenders from an enlisted contractor of MES, where scanned copies of requisite DD/ Bankers Cheque towards cost of tender have been uploaded in Cover 1 but physical copies are not received within the stipulated period, their financial bids (Cover 2) will be opened. However non-submission of physical copies of cost of tender shall be considered as willful negligence of the tenderer with ulterior motives and such tenderer shall be banned from bidding for a period of six months commencing from the date of opening of Financial Bid (Cover 2).

(b) In case of tenders from un-enlisted contractor, where scanned copies of requisite DD/Bankers Cheque towards cost of tender have been uploaded in Cover 1 but physical copies are not received within the stipulated period, their financial bids(Cover 2), will not be opened. Name of such contractors along with complete address shall be circulated for not opening of their bids for a period of six months commencing from the date of opening of Financial bid (Cover 2).

8. Contractor will not be allowed to execute the work by subletting or through power of attorney to a third party /another firm on his behalf. However a contractor can execute the work through power of attorney to sons/daughters/spouse of Proprietor /Partner /Director and firm's own employees, director, project manager **provided they are not having a separate enlisted firm in MES in their name as Proprietor/Partner/Director**.

9. After opening of Cover-1 & during its technical evaluation, in case any deficiency is noticed in the documents required to be uploaded by the tenderer as per NIT, a communication in the form of "Short Fall Documents" on www.defproc.gov.in website shall be sent to the contractor to rectify the deficiency within a period as specified there in, failing which financial bid (Cover-2) shall not be opened & contractor shall not have any claim on the same.

NOTICE INVITING TENDER (NIT) Contd/..

10. Invitation for e-tender does not constitute any guarantee for validation of Technical bid and subsequent opening of financial bid of any applicant/bidder merely by virtue of enclosing DD. Accepting officer reserves the right to reject the Technical bid and not open the finance bid of any applicant/bidder. Technical bid validation shall be decided by Accepting officer based on eligibility of the firm as per criteria given in this Appendix. Tenderer/bidder will be informed regarding nonvalidation of Technical bid assigning reasons therefore through Tender evaluation report which shall be uploaded on the website. Such tenderer, if desires, may appeal to the next higher Engineering authority (NHEA) viz HQ CE (CG) Goa on email ID **cezcgg2-mes@gov.in** with copy to the Accepting officer on email before scheduled date of opening of Cover-2. Next higher Engineer authority (NHEA) shall decide the matter within a period of seven working days from the date of receipt of appeal. The decision of the NHEA shall be final and binding. The tenderer/bidder shall not be entitled for any compensation whatsoever for rejection of his bid.

11. In case an un-enlisted contractor is already executing works in MES, he shall not be considered eligible for the subject tender if the total value of such works is more than twice the tendering limit of MES class of contractor for which it is eligible. For this purpose, details of the works being executed by such a contractor shall be uploaded in Cover-1 of the bid and shall be checked/verified by the Accepting Officer.

12. In case of the BOQ is revised though the corrigendum and the bidder has failed to quote on revised BOQ (i.e he has quoted pre revised BOQ), such bid shall be treated as willful negligence by the bidder and his quotation shall be considered non bonafide. In such cases the lowest tender shall be determined from amongst the valid/bonafide bids only. Accepting Officer may decide whether to re-tender or consider the lowest bonafide tender for acceptance.

13. Revoking the offer or revising the rates upwards or offering voluntary reduction by the lowest tenderer after opening of Cover-2 shall be considered as willful default. For this default a penalty of an amount equal to Earnest Money shall be levied. In case of an unenlisted tenderer, Earnest Money deposited by him shall be forfeited. In case of MES enlisted tenderer having deposited the Standing Security Bond , an amount equal to the earnest money stipulated in the NIT, shall be notified to the tenderer for depositing through MRO and consideration of such tenderer in tender evaluation for future works shall remain suspended till the aforementioned amount is deposited in the Government Treasury. No other disciplinary/administration action shall be taken against such tenderers. In such situation, the next lowest offer shall not be considered for acceptance. Instead, retendering shall be resorted to in a transparent and fair manner and the defaulting tenderer and his related firm if any, shall not be eligible for this tender in second call or subsequent calls.

14. Tender to related firms shall not be issued simultaneously. Firms shall be termed as related if Proprietor/one or more partners/Directors are common. Decision of Accepting Officer on issue/deny the tender to any one of the related firms shall be final/binding.

15. Court of the place from where tender has been issued shall alone have jurisdiction to decide any dispute out of or in respect of this tender. After acceptance of tender, condition 72 jurisdiction of courts of IAFW 2249 shall be applicable.

(SIGNATURE OF CONTRACTOR) **AGE(CONTRACTS)**
DATED : _____ **FOR ACCEPTING OFFICER**

Signature Not Verified
Digitally signed by RAJESH KUMAR
Date: 2024.12.21 11:04:45 IST
Location: Ministry of Defence-MES